

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE DANIEL D. DOMENICO**

Courtroom Deputy: Robert R. Keech
Court Reporter: Julie Thomas

Date: May 5, 2023

Civil Action No: **1:20-cv-01194-DDD-MDB**

Counsel:

HAMKIM, INC., d/b/a VISTA INN,

Plaintiff,

Preston J. Dugas, III
Michael Y. Kim

v.

AMGUARD INSURANCE COMPANY,

Defendant.

Laura J. Ellenberger
Jason D. Melichar

COURTROOM MINUTES

TRIAL TO JURY (DAY 5)

9:02 a.m. Court in session. Jury not present.

Discussion regarding jury instructions provided to counsel by the Court.

9:05 a.m. Jury enters.

9:06 a.m. Defendant's witness **William J. Badini** resumes.

Direct examination by Defendant by Ms. Ellenberger continues.

9:13 a.m. Cross examination by Plaintiff by Mr. Dugas.

9:52 a.m. Re-direct examination by Defendant by Ms. Ellenberger.

9:57 a.m. Defendant's witness **Mark Fontanella** sworn.

Direct examination by Defendant by Ms. Ellenberger.

Exhibit(s) identified: 32, 200, 202, 203, 36, 206, 213

Exhibit(s) 200, 203, 206 RECEIVED.

10:32 a.m. Court in recess.

10:46 a.m. Court in session. Jury enters.

Defendant's witness **Mark Fontanella** resumes.

10:47 a.m. Direct examination by Defendant by Ms. Ellenberger continues.

Exhibit(s) identified: 213, 202

10:53 a.m. Bench conference regarding objection by Plaintiff.

10:59 a.m. Direct examination by Defendant by Ms. Ellenberger continues.

Exhibit(s) identified: 233, 30, 31, 33, 212

Exhibit(s) 212 RECEIVED.

11:23 a.m. Bench conference regarding objection by Plaintiff.

11:24 a.m. Direct examination by Defendant by Ms. Ellenberger continues.

11:26 a.m. Cross examination by Plaintiff by Mr. Dugas.

Exhibit(s) identified: 33, 212, 202

11:39 a.m. Bench conference regarding objection by Defendant.

11:44 a.m. Cross examination by Plaintiff by Mr. Dugas continues.

Exhibit(s) identified: 34

11:47 a.m. Re-direct examination by Defendant by Ms. Ellenberger.

Exhibit(s) identified: 202

11:51 a.m. Defendant rests.

11:51 a.m. Plaintiff has no rebuttal evidence to present.

11:52 a.m. Court in recess.

1:05 p.m. Court in session. Jury not present.

JURY INSTRUCTION CONFERENCE

Plaintiff's oral motion for directed verdict.

1:05 p.m. Argument by counsel.

ORDERED: Plaintiff's oral motion for directed verdict is **TAKEN UNDER ADVISEMENT.**

Defendant's renewed oral motion for judgment as a matter of law.

ORDERED: Defendant's renewed oral motion for judgment as a matter of law is **TAKEN UNDER ADVISEMENT.**

1:07 p.m. Discussion and argument regarding jury instructions.

1:34 p.m. Discussion regarding testimony and request by counsel for additional time for closing arguments.

1:37 p.m. Court in recess.

2:07 p.m. Court in session. Jury not present.

Discussion regarding jury instructions, verdict form, and not having court reporter transcribe the reading of the jury instructions and verdict form. .

2:08 p.m. Court in recess.

2:16 p.m. Court in session. Jury enters.

2:18 p.m. Court reads jury instructions and verdict form.

2:55 p.m. Bench conference regarding issue with regard to jury instructions.

Court's remarks to jury regarding jury instructions.

2:57 p.m. Closing argument by Plaintiff by Mr. Dugas.

3:25 p.m. Closing argument by Defendant by Mr. Melichar.

3:41 p.m. Rebuttal argument by Plaintiff by Mr. Dugas.

3:44 p.m. Court Security Officer (CSO) sworn to sit outside jury deliberation suite.

3:45 p.m. Jury excused to commence deliberations.

Court's remarks to counsel regarding availability and schedule for the afternoon.

3:47 p.m. Court in recess. Subject to call.

4:59 p.m. Court in session. Jury not present.

Court indicates proposed response to jury question. Objection by Plaintiff.
Discussion regarding response to jury question.

5:03 p.m. Court in recess. Subject to call.

5:14 p.m. Court in session. Jury not present.

Further discussion regarding proposed response to question from the jury.
Objection by Plaintiff. Overruled.

5:16 p.m. Court in recess. Subject to call.

6:19 p.m. Court in session. Jury not present

Court informs counsel that jury has reached a verdict.

6:22 p.m. Jury enters

Court reads jury verdict.

6:27 p.m. Jury is polled.

Court thanks jurors for their service and they are discharged.

6:30 p.m. Jury excused

Court's closing remarks to counsel.

6:31 p.m. Court in recess. TRIAL CONCLUDED. TOTAL TIME: 4:58

CLERK'S NOTE: EXHIBITS AND DEPOSITIONS WERE RETURNED TO COUNSEL AT THE CONCLUSION OF THE TRIAL.